

Manoj Kumar Seth v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 2 June 2023 · 2023:AHC:123502-DB · Writ - C No. 19713 of 2023 · **Writ disposed; consider application, reasons if declined.**

HEADNOTE

A tenant's writ for an electricity connection at his shop was disposed of without deciding the distribution company's objection that outstanding dues of an earlier connection and an unresolved theft case against the landlord, said to arise under the U.P. Electricity Supply Code, 2005, barred the connection. Respondent no. 3 was directed to consider the application and, if declining it, to communicate reasons within one week.

FACTUAL SUMMARY

Manoj Kumar Seth, tenant of a shop, sought an electricity connection and said he had applied in accordance with law. Counsel for the distribution company, on written instructions, stated that dues of an earlier connection at the same premises were outstanding and that an unresolved electricity-theft case stood against the landlord. The company therefore said it could not grant the connection, referring to the U.P. Electricity Supply Code, 2005. Standing counsel appeared for the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh connection opposed for prior dues and a theft case against the landlord

HOLDING

Without entering into the merits, the Court disposed of the writ and directed respondent no. 3 to consider the petitioner's application for an electricity connection and to issue appropriate directions. If the connection is declined, the reason must be communicated within one week. The distribution company's objection under the U.P. Electricity Supply Code, 2005, based on outstanding dues of an earlier connection and an unresolved theft case against the landlord, was left undecided. ¶ 3-4

FLAG The order invokes the U.P. Electricity Supply Code, 2005 without identifying any clause, and the Court did not construe one.

PRINCIPLE TAGS

consider-application-communicate-reasons-if-declined The Court left the distribution company's Supply Code objection undecided and directed respondent no. 3 to consider the tenant's connection application, communicating reasons within one week if the connection is declined. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER OUTSTANDING DUES OF AN EARLIER CONNECTION AND AN UNRESOLVED ELECTRICITY-THEFT CASE AGAINST THE LANDLORD BAR A TENANT'S FRESH CONNECTION UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005.

The Court declined to enter the merits and left consideration of the application to respondent no. 3. ¶ 3-4